

		California Rules of Court, rule 3.1324(a), provides in relevant part that a motion to amend pleading must include a copy of the proposed amended pleading, serially numbered to differentiate it from previous pleadings. (Cal. Rules of Ct., Rule 3.1324(a).) Plaintiff Zancanaro's motion does not attach a copy of the proposed second amended complaint. (<i>See</i> ROA # 19.) Attorney Sabbagh purports to attach a copy of the proposed amended complaint as Exhibit 2 to her Declaration (<i>see</i> Sabbagh Decl. ¶ 8), but the attached exhibit is a copy of the operative FAC. No later than nine (9) court days before the continued hearing, Plaintiff shall file and (if applicable) serve a copy of the proposed Second Amended Complaint. Plaintiff is ordered to give notice.
11	Stark 2, LLC vs. Barton	TENTATIVE RULING: For the reasons set forth below, Defendant Austin Barton's Anti-SLAPP motion to strike Plaintiff Stark 2, LLC's Complaint, or portions thereof, pursuant to Code Civ. Proc., § 425.16, is GRANTED in part and DENIED in part. Defendant's request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d)). Plaintiff's objections to the declarations of Austin Barton and counsel Briana Kim are OVERRULED. Plaintiff's request for leave to file a motion for limited discovery is DENIED. Code Civ. Proc. § 425.16, subd. (g) provides that the court, "<u>on noticed motion</u> and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision." Plaintiff did not file a noticed motion. Therefore, the court denies this request as it is improper. <u>Anti-SLAPP motion to strike</u> Under the anti-SLAPP statute, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff

will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1); *Olson v. Doe* (2022) 12 Cal.5th 669, 678)

“The moving party ‘must establish that the challenged claim arises from activity protected by section 425.16’; if the moving party does so, ‘the burden shifts’ to the nonmoving party ‘to demonstrate the merit of the claim by establishing a probability of success.’ [Citation.]” (*Olson, supra*, 12 Cal.5th at p. 678; *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884.) “To succeed in opposing a special motion to strike, the nonmoving party must ‘demonstrate both that the claim is legally sufficient and that there is sufficient evidence to establish a prima facie case with respect to the claim.’ [Citation.] ‘[C]laims with the requisite minimal merit may proceed.’ [Citation.] The moving party prevails by ‘defeat[ing]’ the ‘claim as a matter of law’ [citation] in ‘a summary-judgment-like procedure’ [citation].” (*Olson, supra*, 12 Cal.5th at p. 679; *Wilson, supra*, 7 Cal.5th at 884.) “If the plaintiff fails to meet that burden, the court will strike the claim.” (*Wilson, supra*, 7 Cal.5th at p. 884.)

Protected Conduct

“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396).

At this first step, courts are to “consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009). “The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity.” (*Id.*) “If a cause of action contains multiple claims and a moving party fails to identify how the speech or conduct underlying some of those claims is protected activity, it will not carry its first-step burden as to those claims ... [t]he nonmovant is not faced with the burden of having to make the moving party's case for it.” (*Bonni, supra* at 1011; accord, *Park v.*

Nazari (2023) 93 Cal.App.5th 1099, 1108, citing *Bonni, supra*, 11 Cal.5th 995 at 1011.)

There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc. § 425.16(e)). Defendant contends that the conduct alleged in the complaint is protected under Code Civ. Proc. § 425.16, subd. (e)(2), which provides:

“(e) As used in this section, ‘act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law”

“The anti-SLAPP protection for petitioning activities applies not only to the filing of lawsuits, but extends to conduct that relates to such litigation, including statements made in connection with or in preparation of litigation ... Indeed, courts have adopted ‘a fairly expansive view of what constitutes litigation-related activities within the scope of section 425.16.’” (*Kolar v. Donahue, McIntosh & Hammerton* (2006) 145 Cal. App.4th 1532, 1537 [Citations omitted].)

“[J]ust as communications preparatory to or in anticipation of the bringing of an action or other official proceeding are within the protection of the litigation privilege of Civil Code section 47, subdivision (b) [citation], ... such statements are equally entitled to the benefits of section 425.16.” (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 [internal citations omitted]). “[A] statement is ‘in connection with’ litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.” (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266).

Furthermore, Code Civ. Proc. § 425.16, subd. (e)(2) “has been held to protect statements to persons who are not parties or potential parties to litigation, provided such statements are made ‘in connection with’ pending or anticipated litigation.” (*Summerfield v. Randolph* (2011) 201 Cal.App.4th 127, 136).